

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Crl.Misc.No.66147-M of 2020
(Farhan Anwar Vs. ASJ, Faisalabad & two others)

JUDGMENT

Date of hearing: 03.02.2026

Petitioner by: Mr. Mehram Ali Bali, Advocate.
State by: Mr. Muhammad Nasir Chowhan, Additional
Advocate General, Punjab assisted by Rana
Asif Iqbal, Assistant District Public
Prosecutor.

ABHER GUL KHAN, J. Through this consolidated judgment, I intend to dispose of the instant petition along with the connected petitions enumerated in Appendix-A, as common question of law and facts are involved therein.

2. For the just and proper adjudication of the controversy involved in the instant matter, it is expedient to recount the salient and material facts giving rise to the present petition. Briefly stated, on 27.06.2020 the petitioner, Farhan Anwar, serving as Sub-Divisional Officer, Sub-Division Manawala, District Faisalabad, submitted a written application asserting therein that the electricity meter installed at the premises of Adalat Ali (respondent No.2) had earlier been disconnected and removed on account of persistent non-payment of outstanding dues amounting to Rs.67,590/-. It was further alleged that during an inspection conducted by the Departmental Task Force comprising Shamshad, LM, Shahbaz ALM, Mehboob Masih ALM and Akbar ALM, respondent Adalat Ali was caught while unlawfully abstracting electricity by means of a direct connection with the main supply cable, whereof video-graphic evidence was also prepared. On the basis of the aforesaid application, FIR No.1027 of 2020 dated 27.06.2020 was registered at Police Station Milat Town, Faisalabad for the

offence punishable under Section 462-I, PPC. Upon completion of investigation, the local police submitted report under Section 173, Cr.P.C. The case was thereafter assigned to the learned Additional Sessions Judge, Faisalabad on 08.09.2020, who on the same date issued notice to the learned Assistant District Public Prosecutor to address arguments regarding the maintainability of the police report under Section 173, Cr.P.C. However, vide order dated 12.09.2020, the learned Additional Sessions Judge, halted further proceedings, returned the police report submitted under Section 173, Cr.P.C. to the prosecution, and abstained from recording any acquittal or conviction of the respondent-accused. Aggrieved with the afore-said order, the petitioner has approached this Court by invoking its inherent jurisdiction under Section 561-A, Cr.P.C. through the present petition

3. Arguments heard. Record perused.

4. This Court has observed that pursuant to the complaint filed by the petitioner Farhan Anwar, FIR No.1027 of 2020 was registered at Police Station Milat Town, Faisalabad for the offence under Section 462-I PPC. Upon the completion of investigation report was submitted under Section 173, Cr.P.C. before Additional Sessions Judge, Faisalabad who vide order dated 12.09.2020 returned the same to the prosecution without recording any finding of acquittal or conviction mainly on the premise that the alleged offence squarely falls within the ambit of Chapter XVII-B, PPC comprising Sections 462-G to 462-P, which exclusively deal with offences relating to electricity and were inserted through the Criminal Law (Amendment) Act, 2016. In view of Section 462-P, the provisions of the said Chapter enjoy an overriding effect notwithstanding anything contained in any other law for the time being in force. Additionally, Section 462-O, PPC unequivocally mandates that no Court shall take cognizance of an offence under the said Chapter save upon a complaint instituted by a duly authorized

officer not below the rank of Grade-17, either of the Government or of the concerned distribution company. In this backdrop, the learned Additional Sessions Judge, Faisalabad, while passing the impugned order, observed that the prosecution/department may seek recourse to the competent Court strictly in the manner envisaged under Section 462-O, PPC. In the above factual and legal matrix, this Court deems it appropriate to advert to and examine the language and import of Section 462-O, PPC, which for the sake of convenience and ready reference, is reproduced hereinbelow:-

“462-O Cognizance.—(1) The Court shall try an offence punishable under this Chapter.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 or any other law for the time being in force, the Court shall not take cognizance of an offence under this Chapter except on a complaint made, with reasons to be recorded in writing along with full particulars of the offence committed under this Chapter by duly authorized officer (not below Grade 17) of the Government or the distribution company, as the case may be.”

In addition to the foregoing, it is of considerable significance to note that the expression “Court” stands specifically defined in Section 462-G(a), PPC, which provides that “Court” means the Court of Session designated as an Electricity Utilities Court and duly empowered to take cognizance of offences falling within the scope of this Chapter. This Court has further observed that, under Schedule-II of the Code of Criminal Procedure, all penal provisions contained in Chapter XVII-B, PPC have been declared cognizable. The legal consequence thereof is unambiguous that the local police is fully competent to register an FIR and to conduct investigation in respect of such offences. The pivotal question, however, which arises for determination in the present context is whether after submission of report under Section 173, Cr.P.C. in respect of offences enumerated in Chapter XVII-B, PPC, the Court is obliged to proceed with the trial or is required to await the institution of a complaint by an officer not below the rank of Grade-17, as contained under

Section 462-O, PPC. In order to resolve this controversy, I have meticulously examined the record of the case in conjunction with the relevant statutory framework. In case reported as K-Electric (Pvt.) Ltd. through authorized Officer/Attorney and others v. The State and others (PLD 2019 Sindh 209), a learned Division Bench of the High Court of Sindh observed that the FIRs for the offences mentioned in Chapter XVIII-B PPC got registered by an authorized officer can be treated as complaint under Section 462-O PPC. For ease of reference the relevant portion of the judgment is reproduced hereunder:-

“However, learned Civil Judge who has passed the impugned orders is directed to send all such FIRs, which seem to have been registered respectively by duly authorized officer of K-Electric, to the relevant Court of Session designated as Electricity Court which shall treat all these FIRs as complaints filed under section 462O P.P.C. and proceed further in accordance with law.”

It is well settled that in respect of ordinary criminal offences, a Court may assume cognizance under Section 190, Cr.P.C. either upon receipt of a police report under Section 173, Cr.P.C. or upon a private complaint. Contrarily, the legislative scheme governing offences under Chapter XVII-B, PPC conspicuously restricts the initiation of proceedings at the instance of the general public. A comparative reading of Section 462-O, PPC alongside Sections 195 and 196, Cr.P.C. is instructive in this regard. Under Section 195, Cr.P.C., cognizance of specified offences is taken only upon a written complaint by a public servant or a Court, without any statutory requirement of recording reasons prior to taking such cognizance. Section 196, Cr.P.C., on the other hand, imposes a bar on the taking of cognizance of certain offences except upon a complaint or sanction by the Federal or Provincial Government or an authorized officer. Notably, several offences enumerated in Section 196, Cr.P.C., such as those under Sections 123-B, 171-J, 153-A and 505, PPC, are cognizable in nature. Consequently, FIRs are duly registered and investigations conducted, yet

cognizance by the Court is conditioned upon the requisite complaint or sanction at the stage of framing of charge. A similar legislative pattern is discernible in Section 7 of the Explosive Substances Act, 1908, which mandates prior sanction for prosecution, notwithstanding the fact that an FIR is registered and investigation is carried out under the said law.

5. In view of the foregoing discussion, it has transpired that the FIR in the present case was registered on the basis of a complaint forwarded by the petitioner, Farhan Anwar, SDO and it has been categorically stated by the learned Additional Advocate General Punjab as well as the learned Assistant District Public Prosecutor that the petitioner holds a Grade-17 post. Thus, the approach adopted by the learned Additional Sessions Judge, Faisalabad, in returning the police report submitted under Section 173, Cr.P.C., is wholly untenable in the eye of law and suffers from patent legal infirmity. The said approach proceeds on a misconstruction of the statutory scheme governing offences in Chapter XVII-B PPC. A complaint lodged by a duly authorized officer, culminating in the registration of an FIR under Section 462-I, PPC, is procedurally sufficient and legally efficacious to enable the competent court to assume cognizance of the matter and proceed in accordance with Section 462-O, PPC. It is pertinent to mention here that the legislative intent underlying Section 462-O, PPC, is to ensure regulatory oversight and accountability and not to engraft an additional procedural impediment or superfluous layer of formality which would unnecessarily protract or frustrate the course of criminal justice. Needless to mention here that once the criminal law is set in motion through the registration of an FIR on the basis of a complaint by an authorized officer, the court is fully empowered to take cognizance of the offence without insisting upon the filing of a separate or subsequent complaint. In view of the above, the impugned order cannot be sustained and is hereby set aside. Consequently, the instant

petition as well as the connected petitions detailed in Appendix-A are allowed with the direction to the respective Courts of Session designated as Electricity Utilities Courts to proceed with the cases strictly in accordance with law and in the light of the observations made hereinabove.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The judgment was announced
on 03.02.2026, dictated, prepared,
and signed on 10.02.2026.
Najum*